

26STCV03011 26STCV03011

County: los-angeles

Division: Civil Law and Motion

Department: 507

Hearing date: 2026-07-22

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Case Number: 26STCV03011 Hearing Date: July 22, 2026 Dept: 507

Tentative Ruling

Judge Rolf M. Treu,

Department 507

HEARING DATE: July 22,

2026 TRIAL DATE: Not Set

CASE: Joseph Cofey v. California Department of Corrections
and Rehabilitation

CASE NO.: 26STCV03011

DEMURRER TO COMPLAINT

MOVING PARTY: Defendant

California Department of Corrections and Rehabilitation

RESPONDING PARTY: Plaintiff Joseph Cofey

CASE HISTORY:

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01/29/26: Complaint

filed.

TENTATIVE RULING:

Defendant's demurrer is SUSTAINED with 30 days leave to amend.

Moving Party to
give notice.

BACKGROUND

This is an action for negligence.

DISCUSSION:

Defendant demurs to the complaint, on the grounds that Plaintiff did not plead a statutory basis for the causes of action he brings against Defendant, a public entity, as required by the Government Claims Act; Plaintiff did not plead compliance with the Government Claims Act; and the complaint is vague and uncertain.

The Court agrees. First, Plaintiff fails to provide a statutory basis to sue a public entity such as Defendant. Government Code § 815 provides, in pertinent part, that, except as otherwise provided by statute, a "public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person." (Government Code § 815(a).) (See *Nasrawi v. Buck Consultants LLC* (2014) 231 Cal.App.4th 328, 341 ("A public entity...is subject to direct liability only as provided by statute or required by the state or federal Constitution. [Citations]")). (See also *San Mateo Union High School Dist. v. County of San Mateo* (2013) 213 Cal.App.4th 418, 427-428.) "[D]irect tort liability of public entities must be based on a specific statute declaring them to be liable, or at least creating some specific duty of care, and not on the general tort provisions of Civil Code section 1714. Otherwise, the general rule of immunity for public entities would be largely eroded by the routine application of general tort principles." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1183.) To state a claim against a public entity, "every fact essential to the existence of statutory liability must be pleaded with particularity, including the existence of a statutory duty." (*Searcy v. Hemet Unified School Dist.* (1986) 177 Cal.App.3d 792, 802.) Here, Plaintiff has failed to identify the statute providing for Defendant's liability. Accordingly, the demurrer is sustained on this ground.

Next, if a complaint

subject to the Government Claims Act (Government Code section 900 et seq.)

fails to allege facts demonstrating or excusing compliance with the Act, a

demurrer on that basis is properly sustained. (State of California v.

Superior Court (Bodde) (2004) 32 Cal.4th 1234, 1237.) Plaintiff filed a form complaint but did not

check box 9, which states that Plaintiff is required to comply with a claims

statute and whether he complied or was excused. Thus, the complaint fails to

allege compliance; the demurrer is also sustained on this ground.

Lastly, the complaint is devoid of any facts, and does not specify how

Defendant was negligent. "[D]emurrers for

uncertainty are disfavored, and are granted only if the pleading is so

incomprehensible that a defendant cannot reasonably respond." (Lickiss

v. Fin. Indus. Reg. Auth. (2012) 208 Cal.App.4th 1125, 1135.) Here, as

there are no facts to indicate how Defendant was negligent, Defendant cannot

reasonably respond. Thus, the demurrer is also sustained on this ground.

The Court notes that

Plaintiff has filed a notice of statutory basis and notice of cause of action.

It is unclear if Plaintiff meant the filings to be his opposition or an amended

complaint. Because it is not clear, the Court cannot construe it as an amended

complaint. In these filings, Plaintiff does cite to statutory bases, however

they must be in the operative complaint. Further, these filings do not provide

any clarity as to the facts alleged against Defendant and thus, even if

construed as an amended complaint, is still uncertain.

CONCLUSION:

Accordingly, Defendant's

demurrer is SUSTAINED with 30 days leave to amend.

Moving Party to

give notice.

IT IS SO ORDERED.

Dated: July 22, 2026 _____

Rolf M. Treu

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.